

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2025CUPA038578: PRIMITIVO CORTES FIGUEROA vs 805 TRUCKING, INC., et al.
07/20/2026 in Department 43**

**Motion to Compel RESPONSES TO DEFENDANT'S SPECIAL INTERROGATORIES,
SETS TWO AND THREE AND REQUEST FOR MONETARY SANCTIONS**

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motions:

1. Defendant 805 Trucking, Inc's Motion to Compel Responses to Form Interrogatories (Sets 2 and 3)
2. Defendant 805 Trucking, Inc's Motion to Compel Responses to Demands for Document Production (Sets 2 and 3).

Tentative Ruling: Plaintiff's counsel represents responses to the discovery at issue have been served (form interrogatories set 2 and 3 and document demands set 2 and 3). The motions therefore are moot and denied on that basis. There is no evidence disputing those representations.

Because Plaintiff's counsel did not respond to defense counsel's voicemail of June 5, 2026, inquiring about the discovery (Azatyan Decs. at ¶15), the motions were necessary, and sanctions are warranted. The Court finds that the moving party is entitled to reasonable fees and costs for the two motions (Code Civ. Proc., §§ 2030.290(c); 2031.300(c).) The hourly rates are reasonable but the hours claimed are not. Attorney Azatyan states she spent two hours preparing a two-page

canned interrogatory motion and brief declaration and three hours on the same for inspection demands. There was no opposition, only a “mea culpa” from Plaintiff’s counsel, so there was nothing to review, and no reply needed or filed. The two hours for each motion (four total) for preparing and appearing at the hearing is likewise excessive. There is virtually no preparation required, and the remote appearance will be less than an hour. The Court awards a total of \$750 plus costs of \$61.65 per motion. Total sanctions are \$873.30 payable by Plaintiff’s counsel to Defendant within 30 days.

Moving party is ordered to serve notice of the Court’s ruling.